

On the Court's own motion, the motion to compel is continued to August 25, 2026 at 9:00 a.m. in Department Seven.

YVONNE GARCIA; ET AL. vs. PRIME ASCOT, LP
Case No. CU25-05130

Motion to Strike

TENTATIVE RULING

Defendant Prime Ascot, LP's motion to strike is granted without leave to amend.

Although Defendant's motion is untimely, having been filed after the filing of an answer (Code Civ. Proc. § 435(b)(1); *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913; *Adohr Milk Farms, Inc. v. Love* (1967) 255 Cal.App.2d 366, 371), the court may "at any time in its discretion", strike out all or part of any pleading it deems to be not drawn or filed in conformity with the laws of the state, a court rule, or an order of the court (Code Civ. Proc. § 436(b)).

Punitive damages may be awarded for the breach of an obligation not arising from contract if the defendant is guilty of oppression, fraud, or malice. (Civ. Code § 3294(a).) Without actual intent to cause injury, both malice and oppression require despicable conduct carried out in conscious disregard of the rights of others. (Civ. Code § 3294(c); *Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) "Despicable conduct" is conduct that is so "vile, base, contemptible, miserable, wretched or loathsome" that it causes the type of outrage often associated with crime. (*Johnson & Johnson Talcum Powder Cases* (2019) 37 Cal.App.5th 292, 332.) Punitive damages may be imposed for a landlord's failure to repair. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 920.)

An employer may not be held liable for punitive damages based on the actions of an employee "unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are award or was personally guilty of oppression, fraud, or malice." (Civ. Code § 3294(b).) If the employer is a "corporate employer", the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be by an officer, director, or managing agent of the corporation. (*Ibid.*)

A plaintiff must plead specific facts to show entitlement to punitive damages. (*Today's IV v. Los Angeles County Metro. Transp. Auth.* (2022) 83 Cal.App.5th 1137, 1193; *Noonan v. Rousselot* (1966) 239 Cal.App.2d 447, 453.) Conclusory characterizations of a defendant's conduct as intentional, willful, or fraudulent are insufficient. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

The court cannot conclude that malice or oppression cannot be established as a matter of law. Plaintiffs alleged that they notified the property managers of the rodent infestation on numerous occasions. (Complaint, ¶¶ 17, 20, 22.) The property managers only provided Plaintiffs with mouse traps, with instructions to place the traps around the property. (*Id.* at ¶¶ 18, 20.) Although the property managers were notified that the traps were ineffective in controlling the infestation and informed that the situation was causing Plaintiffs “extreme distress and anxiety”, the property managers did not obtain professional pest control services and did not take any other action to remedy the infestation. (*Id.* at ¶¶ 19-23, 25.)

However, Plaintiffs fail to allege any facts supporting the conclusory allegation that Defendant “consented to, approved, affirmed, and ratified each and every action taken by the PROPERTY MANAGER”. (Complaint, ¶ 8.) The complaint expressly alleged that Defendant “hired multiple property managers ... to manage the SUBJECT PROPERTY” and that it was the responsibility of these property managers to “hire[] outside contractors to make repairs”. (*Id.* at ¶ 7.) Plaintiffs alleged that they notified the property managers of the infestation and it was the property managers who gave them the traps and instructions to place the traps around their unit. (*Id.* at ¶¶ 17, 20.) Consequently, any liability of Defendant for punitive damages would be as an employer. But, there is no allegation establishing that Defendant had actual knowledge of, or any cause to suspect, the existence of the rodent infestation, the conduct of the property managers in merely supplying mouse traps for the tenants to place around the property, the lack of efficacy of the traps in controlling the infestation, or the “extreme distress and anxiety” suffered by Plaintiffs.

The court notes that Defendant’s claim that it is a corporate employer is not supported by the allegations of the complaint and Defendant failed to present any judicially noticeable material establishing Defendant’s corporate character. Plaintiffs alleged that Defendant “is a business entity, form unknown”. (Complaint, ¶ 3.) At best, the court could reasonably infer from Defendant’s name that Defendant is a limited partnership. Defendant cites no legal authority holding that a limited partnership qualifies as a “corporate employer”.

Despite generally requesting leave to amend, Plaintiffs have not met their burden of showing in what manner they propose to amend the complaint and how the amendment would change the legal effect of the pleading. (*Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1175.)

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA L.P.; ET AL.
Case No. CU25-06641

Defendant’s Motion to Strike Portions of Plaintiffs’ First Amended Complaint

TENTATIVE RULING